

26STLC00351 26STLC00351

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-08

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C07%2F08%2F2026

Source SHA-256: cfff5197c437492741c7280871bd7ee294c3143f95a4c17f456a2e9184d2e960

Case Number: 26STLC00351 Hearing Date: July 8, 2026 Dept: 26

TENTATIVE RULING:

Based on the foregoing, Defendant Dynasty Pharmaceuticals, Inc.'s Motion to Quash for Lack of Personal Jurisdiction, or in the Alternative, Stay or Dismissal for Inconvenient Forum is granted.

The case is dismissed without prejudice.

Analysis:

Plaintiff Daniel Taheri ("Plaintiff") filed the instant action for breach of contract, fraud, and related claims against Defendant Dynasty Pharmaceuticals, Inc. ("Defendant") on January 20, 2026. On April 28, 2026, Defendant filed a Demurrer to the Complaint, which is set for hearing on July 30, 2026. Plaintiff also filed a Motion to Quash for Lack of Personal Jurisdiction, or in the Alternative, Stay or Dismissal for Inconvenient Forum set for hearing on the same date.

Defendant then filed the instant Motion to Quash for Lack of Personal Jurisdiction, or in the Alternative, Stay or Dismissal for Inconvenient Forum on May 5, 2026. The instant Motion was served on Plaintiff by electronic mail on the same day. No opposition has been filed to date.

Discussion

Motion to Quash

Service of Summons for Lack of Personal Jurisdiction

Defendant moves to quash service

of the summons and complaint pursuant to Code of Civil Procedure section 418.10, which states: "A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: To quash service of summons on the ground of lack of jurisdiction of the court over him or her."

(Code Civ. Proc., § 418.10, subd. (a)(1).) Specifically, Defendant argues that it lacks sufficient minimum contacts with California for the state to exercise personal jurisdiction over him. (Motion, § III(A).)

Once a defendant moves to quash, the plaintiff bears the burden to prove that sufficient minimum contacts with the forum state exist. (In re Automobile Antitrust Cases I and II (2007) 135 Cal.App.4th 100, 110.) If the plaintiff meets that burden, the defendant must show that the exercise of jurisdiction would be unreasonable. (HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1168.) Minimum contacts require that (1) there was "purposeful availment" of the benefits and protections of the forum; (2) the controversy arose out of or is related to those forum contacts; and (3) the exercise of jurisdiction is reasonable and does not violate "traditional notions of fair play and substantial justice." (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 472–473.)

Defendant contends that it directed no activity towards this state, maintains no offices or other physical presence here, has no California-based employees, and does not target California with specific advertising. (Motion, p. 8:25-28.) The burden now shifts to Plaintiff to demonstrate that the minimum contacts test is satisfied, but in light of Plaintiff's non-opposition, the Court necessarily finds that it cannot exercise personal jurisdiction over Defendant.

Motion to Stay or Dismiss on
Grounds of Inconvenient Forum

Alternatively, Defendant moves under section 410.30 to argue that the parties entered into contracts with forum selection clauses that mandate bringing an action in the State of Washington. Code of Civil Procedure section 410.30 states in relevant part: "When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside

this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just.” (Code Civ. Proc., § 410.30, subd. (a).) Motions under this statute are not subject to Code of Civil Procedure section 418.10. (Code Civ. Proc., § 410.30, subd. (b).)

Copies of the parties’ contracts are attached to the supporting declaration of defense counsel and expressly provide: “Each of the parties agrees that legal or equitable action between the parties shall be brought, and each of the parties irrevocably consents to personal jurisdiction, in U.S. District Court for the Western District of Washington, or if such court does not have jurisdiction or will not accept jurisdiction, in any court of general jurisdiction in Snohomish County, Washington, and waives any objection it may have to the laying of venue of any such action in such court.” (Motion, Gennaro Decl., Exh. B, p. 2, ¶“Governing Law”.) This was reiterated in every application for credit completed by Plaintiff. (Id. at Exh. B, pp. 4, 6, 8, 10, 12, 14, 16, 18.)

Pursuant to the parties’ own agreements to litigate this matter in the State of Washington, it would be in the interest of substantial justice to have this action heard in a forum outside this state. Accordingly, stay or dismissal this action on the grounds of inconvenient forum is warranted. In light of the Court’s ruling on the motion to quash, above, the Court will likewise dismiss this action on the grounds of inconvenient forum.

Conclusion

Based on the foregoing, Defendant Dynasty Pharmaceuticals, Inc.’s Motion to Quash for Lack of Personal Jurisdiction, or in the Alternative, Stay or Dismissal for Inconvenient Forum is granted.

The case is dismissed without prejudice.

Moving party to give notice.